

BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 21-10

ORANGE AVENUE EXPRESS, INC.
Complainant,

v.

HAPAG LLOYD AG
Respondent.

JOINT STATUS REPORT

As required by the initial order herein, Complainant Orange Avenue Express, Inc. (“OAE”) and Respondent Hapag-Lloyd, AG (Hapag) submit their joint status report:

On February 7, 2022 counsel for the parties met and conferred for the purposes of completing this joint status report. As required by the initial order and 46 CFR §502.414(h) the parties discussed, initial disclosures, expert witnesses, potential discovery disputes, and the use of other documents or techniques which may assist with limiting discovery. Per the Commission’s notice, the initial decision in this matter must be issued no later than December 8, 2022. Also per the initial order and 46 CFR §502.141(g) discovery should be completed by June 20, 2022 (150 days from the date of service of Respondent’s answer) and the parties were ordered to confer with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”).

A. **CADRS**: Complainant contacted CADRS via telephone on two occasions and again via email on February 4, 2022. Although the email was acknowledged by CADRS, CADRS has not

scheduled a preliminary conference. The parties discussed the possibility of mediation through CADRS in any event. At present, the parties believe initial settlement discussions can occur directly among counsel. The parties do not rule out a future formal mediation by CADRS or private mediation.

B. Stipulation to continue the current discovery cut off date: The current discovery cut-off date is June 20, 2022. The parties jointly request the discovery cut-off be continued to August 31, 2022. The parties met and conferred regarding a discovery schedule and discovered that counsel's schedule could conflict with orderly discovery completion by June 20, 2022. Conflicts include three separate arbitrations and a week-long conference in May 2022 alone, a collegiate graduation and respective personal vacations. Coupled with an ongoing difficulty as related to availability of witnesses due to Covid restrictions, the parties stipulate and request the discovery cut off date be continued to August 31, 2022. Continuance of discovery to this date will not impact the ability to issue an initial decision before December 8, 2022.

C. Proposed dates: Provided the request to extend the discovery cut-off to August 31, 2022 is granted the parties propose the following schedule:

1. Initial Disclosure exchange was completed on February 4, 2022.
2. In an attempt to potentially narrow discovery in this matter, the parties discussed the possibility of Hapag supplementing its initial disclosures and/or informally producing documents which should help the parties focus formal discovery requests moving forward. It is premature to give an exact date on which the informal exchange could be completed, but at the same time the parties are aware of their obligations to diligently move this case towards resolution. As such, the parties will endeavor to serve initial written discovery no later than March 11, 2022. Responses

to written discovery will be due thirty days after service unless otherwise stipulated among the parties.

3. The parties discussed the potential need for a protective order to maintain confidentiality of documents and information. Complainant to submit a proposed protective order to Respondent no later than February 25, 2022.

4. The parties anticipate that depositions will commence on or after June 20, 2022. Depositions may be conducted virtually.

5. Simultaneous exchange of expert reports: August 17, 2022.

6. Rebuttal witness reports due August 26, 2022.

7. Discovery cut off: August 31, 2022

8. The parties will attempt to streamline discovery and use alternative methods to present evidence, such as stipulations etc., but otherwise to do not anticipate the need to limit the amount of discovery allowed under applicable regulations or as the parties may bring to the attention of this tribunal if necessary.

9. Complainant's prehearing statement due September 14, 2022.

10. Respondent's prehearing statement (if not joint) due September 28, 2022.

11. Proposed date of Prehearing conference September 30, 2022

12. Further briefs and hearing, date, location and duration to be addressed at the Prehearing conference. It is anticipated that two or three days of hearing will be necessary.

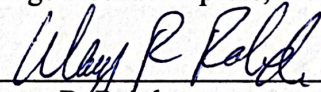
Date: February 10, 2022

Respectfully submitted,

Stephen M. Uthoff

Digitally signed by
Stephen M. Uthoff
Date: 2022.02.10
13:30:47 -08'00'

Stephen M. Uthoff
The Uthoff Law Corporation
111 W. Ocean Blvd., Suite 1960
Long Beach, California 90802
t. 562-437-4301
f. 562-437-4341
suthoff@uthofflaw.com
Attorneys for Complainant,
Orange Avenue Express, Inc.


Wayne R. Rohde
Joshua P. Stein
COZEN O'CONNOR
1200 Nineteenth Street, NW
Suite 300
Washington, DC 20036
wrohde@cozen.com; jstein@cozen.com
(202) 463-2504
Attorneys for Respondent
Hapag-Lloyd, AG

CERTIFICATE OF SERVICE

I hereby certify that on February 10, 2022, the foregoing Joint Status Report has been served upon all interested persons and parties by electronic means pursuant to the below list.

Stephen M.
Uthoff

Digitally signed by
Stephen M. Uthoff
Date: 2022.02.10 13:31:12
-08'00'

Stephen M. Uthoff

Counsel for Respondents Hapag-Lloyd, A.G.

Jeffrey F. Lawrence

Wayne R. Rohde

Joshua P. Stein

COZEN O'CONNOR

1200 Nineteenth Street, NW, Suite 300

Washington, DC 20036

Telephone: (202) 463-2504

Emails: jlawrence@cozen.com; wrohde@cozen.com; jstein@cozen.com

Presiding Administrative Law Judge

Erin M. Wirth, Chief Administrative Law Judge

Office of Administrative Law Judges

Federal Maritime Commission

800 N. Capitol St., N.W.

Washington D.C. 20573-0001

judges@fmc.gov